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General Comment

Hello!

I've been involved in the field of computational linguistics since 2005, and a hobbyist in the field of generative art since the 90s (ever since the field was called "meta art"). As my field moves to its zenith, I feel there are several changes that can be made - as a matter of law, and a matter of policy - that would secure the advantages of AI for the future.

First and foremost: Fair use. While America currently enjoys better protections of the right of fair use than the entire rest of the world, these protections are largely shaped by judicial decisions, not establisehd by statue. Federal law must be written to make fair use an affirmative defense, explicitly including summarizing, discussing, reviewing, satirizing, inspiration, citing, and creating works in the same vein as a cited work, automatically defended. This would ensure that creative uses of content are not stifled by legal uncertainty - and it would benefit craftsmen who don't use AI, as well.

Second: SLAPP protection. Currently, artificial intelligence projects can be stalled or even stopped by well-heeled litigants who, even without valid copyright or patent claims, threaten software makers with prohibitively expensive lawsuits. Right here in Kansas City, Mycroft AI - a competitor to Asia's Siri and Google Assistant - was sued out of existance by a patent troll. To allow a lawsuit, a product ought only be in violation of the copyright of a work if it can be used, intentionally and consistently without induction by the user, to make a copy of the product. This mirrors the standard we hold photocopiers to: a photocopier can be used to make copies of copyrighted works, but photocopiers are legal because they do not seek out and generate, they must be induced to do so by a user. The mere presence of training corpora or probability matrices in a work of software should not magically make it vulernable to unboudned copyright claims.

Third: Copyright damage limitations. The maximum damage that a business can charge should be capped to a reasonable market value - roughtly the ordinary sale price of a work in that style. Right now, copyright cartels have been stifiling innovation by threatening damages that exceed the total amount they would ever make from it - for example, Getty vs Stability AI. These astronomical demands have created a class of 'vampire copyright holderss' who produce or purchase rights not to create works to sell, but to have an avenue to pursue litigation Our legal framework should forcus on ensuring that creators are compensated fairly; not to give the publishers the ability to seek infinite rent on a work inspired by a creator they represent.

Fourth: Public domain datasets. Major providers of works, such as the Library of Congress, the Smithsonian, NASA, NSF, and NOAA all provide information that is the basis of many a public domain dataset; the US Government should take the reigns of, publishing so much high-quality, hard-to-falsify, and consistent data that it is hard for any other country to step in. A hundred years ago, in the days of Federal Project Number One (a project for writers to work in World War II), one of the works they created, the Handbook of Mathematical Functions, is treated as so foundational to advanced mathematics that a European poet once called it "America's gift to humanity." A blitz of good information can be this generation's Federal Project One, a scientific baseline that improves art and industry with it.

Fifth: Responsibility. A Section 230-like assignment of sole responsibility for the flaws of AI to the users of AI. In the early days of the internet, many people attempted to wash their hands clean of any liablity by stating that the website, as the algorithm that last transmited was the true originator of the final message; Section 230 prevented abusers from using this to wash their own hands clean of liability. Similarly, if someone misuses AI, they must be held solely responsible for their actions.

Finally: If American Artificial Intelligence is to take off, it must be open source. There are thousands of open source AI packages out there, and Americans can (and should) be working on, heading, and curating them. After all, one of the biggest reasons that China's DeepSeek was adopted so quickly was its easy licensing under the permissive MIT license. An open-source approach draws in developers, users, and creators quickly - as the sudden gold rush to DeepSeek has proven. The laws of Europe and Asia are deeply beholden to international copyright cartels. But while they seek infinite rent from works they never made, we can make the field quintessentially American by providing the field with eager support - field, turning the field into one that is free to use, thus free to hack, thus free to get hooked on. After all, if they have no strings holding them to their home nations, they'll find no reason not to move to a nation that supports them.